

Kamar Jahan v. State of U.P. & Ors.

High Court of Judicature at Allahabad · Division Bench · 7 February 2023 · WRIT - C No. - 35664 of 2022 · **Writ disposed; SDO to consider connection application in accordance with law.**

HEADNOTE

The petitioner sought a mandamus to decide her 15 April 2022 application and grant an electricity connection at Nagina, Bijnor. Counsel for Paschimanchal Vidyut Vitran Mandal and the State submitted that the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005 are self-contained. Without expressing any opinion on merits, and with the consent of the parties, the Division Bench disposed of the writ by directing the Sub-Divisional Officer, PVVNL, Dhampur Road Nagina, Bijnor to consider the application and pass an appropriate order strictly in accordance with law within three weeks of production of a certified copy.

FACTUAL SUMMARY

Kamar Jahan filed a writ petition in the Allahabad High Court seeking a command to the respondents to decide her application dated 15 April 2022 and to provide an electricity connection at her house in Mohalla Lohari Sarain, Near Sharbat Vali Gali Masjid, Kasba Nagina, District Bijnor. Counsel for Paschimanchal Vidyut Vitran Mandal, Bijnor, and the Standing Counsel submitted that the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005 are self-contained and that the petitioner could pursue the remedies available under those instruments.

HOLDING-UNITS

INTERPLAY · UP-2005

new connection application — consider in accordance with law

HOLDING

Where a consumer seeks a writ commanding the distribution licensee to decide a pending application and grant an electricity connection, and the licensee and the State contend that the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005 are a self-contained code, the High Court will not keep the writ pending on merits. It may dispose of the petition, without expressing any opinion on the merits and with the parties' consent, by directing the concerned Sub-Divisional Officer to consider the application and pass an appropriate order strictly in accordance with law within a fixed time. ¶ 1

FLAG order cites the 2003 Act and 2005 Code generally; no numbered clause

PRINCIPLE TAGS

UP-2005::consider-connection-application Writ seeking mandamus to decide a 15.04.2022 connection application and grant supply at Nagina, Bijnor was disposed without a merits grant or refusal; SDO, PVVNL Nagina directed to consider the application and pass an appropriate order strictly in accordance with law within three weeks of production of a certified copy. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER IS ENTITLED TO THE ELECTRICITY CONNECTION ON THE APPLICATION DATED 15.04.2022

Court expressly declined to opine on merits; SDO to consider strictly in accordance with law. ¶ 1

